

TRYON v. ANGELS GUN CLUB, INC.

17CV42160

**CROSS-COMPLAINANT'S MOTION FOR LEAVE TO FILE
FOURTH AMENDED CROSS-COMPLAINT**

Cross-Complainant Angels Gun Club, Inc., moves for leave to file a Fourth Amended Cross-Complaint to include all Tryon family members in title to the subject real property. The causes of action largely track the earlier cross-complaint.

The court generally affords great liberality to a party to file an amended pleading. (See *Cal. Gasoline Retailers v. Regal Petroleum Corp.* (1958) 50 Cal. 2d 844, 851.) However, where a party would be prejudiced by amendment or there was unnecessary delay in seeking amendment, the court may deny leave to file an amended pleading. Cross-defendant argues that cross-complainant has inexcusably delayed the request and that actual prejudice exists.

In addressing the questions of unnecessary delay and prejudice to cross-defendant, the court is persuaded that pleadings to include all family members on title to the real property is necessary for any enforceable resolution. Additionally, the court considered the reply declarations which clarified the issues (though they were arguably beyond the scope of the underlying motion).

Motion for Leave to File Fourth Amended Cross-Complaint is GRANTED.

The Clerk shall provide notice of this Ruling to the parties forthwith. Moving party to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.